

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA

Court (CPA) Application No:
CA/CPA/0039/26

High Court of Colombo Case
No: Special Child Abduction
HC 01/2025

In the matter of an application for Revision in terms of Article 138(1) of the Constitution of the Democratic Socialist Republic of Sri Lanka read with section 11(1) of the High Court of the Provinces (Special Provisions Act) No. 19 of 1990 (as amended) against the Order dated 28th April 2026 delivered by the High Court of the Western Province Holden in Colombo in Special Child Abduction Case No. HC 01/2025 under Section 9 of the Civil Aspects of International Child Abduction Act No. 10 of 2001 read with the Hague Convention on the Aspects of International Child Abduction of 1980, Re: Kiara Maria Dissanayake.

ALAHANAWAN BANDARAGE AYESHA
JINASENA,

President's Counsel,
Secretary to the Ministry of Justice and
National Integration
No. 19, Sri Sangaraja Mawatha,
Colombo 10.

PETITIONER

-Vs-

1. **MEGHA DASHINI WEERASEKARA,**
No. 32/A/3/4, Alakeshwara Road,
Ethul Kotte, Kotte.

2. **MARIUS ROSHAN WILLIAM
DISSANAYAKE,**
No. 21, Simon Hewawitharana Road,
Colombo 03.

And presently of,

1018, Cambie Street, Unit 308,
Vancouver, British Columbia,
V6B 6J6, Canada.

RESPONDENTS

AND NOW BETWEEN

**MARIUS ROSHAN WILLIAM
DISSANAYAKE**

No. 21, Simon Hewawitharana Road,
Colombo 03.

2nd RESPONDENTS-PETITIONER

-Vs-

**ALAHANAWAN BANDARAGE AYESHA
JINASENA,**

President's Counsel,
Secretary to the Ministry of Justice and
National Integration

No. 19, Sri Sangaraja Mawatha,
Colombo 10.

PETITIONER-RESPONDENT

MEGHA DASHINI WEERASEKARA,
No. 32/A/3/4, Alakeshwara Road,
Ethul Kotte, Kotte.

1st RESPONDENT-RESPONDENT

Before : **D. THOTAWATTA, J.**
K. M. S. DISSANAYAKE, J.

Counsel : Ali Sabry, PC for the 2nd Respondent-
Petitioner.
Hashini Opatha, SSC with Akila
Dalpatadu, SC and Ashara Seneviratna,
SC for the Petitioner-Respondent.

Kuvera de Zoysa, PC with Sajana De
Zoysa, Niranjan Arulpragasam
and Ashenka De Silva instructed by
Niroshi Paranagama for the 1st
Respondent-Respondent.

Written Submissions
of the 2nd Respondent-
Petitioner tendered on : 03.07.2026 and 02.09.2026.

Written Submissions
of the 1st Respondent
-Respondent tendered on : 06.07.2026 and 07.09.2026.

Written Submissions

of the Petitioner-Respondent

tendered on : 26.06.2026 and 28.08.2026.

Decided on : 25.09.2026

K. M. S. DISSANAYAKE, J.

Instant application in revision has been preferred to this Court by the 2nd Respondent-Petitioner seeking *inter-alia*, to set aside the order dated 28.04.2026, made in the exercise of the special jurisdiction vested in him by Section 9 of the Civil Aspects of International Child Abduction Act No. 10 of 2001 (hereinafter called and referred to as “the Act”) by the learned High Court Judge of the Western Province holden in Colombo (hereinafter called and referred to as “the learned High Court Judge”) in an action styled “Special Child Abduction HC 01/2025” a certified copy of which was annexed to the petition furnished to this Court by Petitioner marked as ‘**A10**’ (hereinafter called and referred to as ‘the HC order’) (*Vide*- prayer ‘C’ of the petition) and to uphold and sustain the preliminary objection so raised by the 2nd Respondent-Petitioner and dismiss the Petitioner-Respondent’s application dated 03.10.2025 *in-limine* (*Vide*- prayer ‘D’ of the petition), or in the alternative to prayer ‘C’ and ‘D’, to direct the learned High Court Judge to determine the said preliminary objection and adduce reasons therefor (*Vide*-prayer ‘E’ of the petition).

Instant application in revision was on the other hand, vehemently, opposed by both the Petitioner-Respondent as well as the 1st Respondent-Respondent on the grounds enumerated in their respective statement of objections.

The facts material to the instant application in revision may be briefly, set out below.

The Petitioner-Respondent being the holder of the office of the Secretary to the Ministry of Justice and by virtue of the said office the Petitioner-Respondent being the Central Authority within the meaning of section 4 of

the Act; that, by virtue of the powers vested in her under and in terms of section 9 of the Act as the Central Authority, the Petitioner-Respondent had in her application dated 03.10.2025, made an application to the High Court of the Western Province holden in Colombo (hereinafter called and referred to as “the High Court of the Province”) praying *inter-alia*, for an interlocutory order in terms of Sec 377(b) of the Civil Procedure Code in respect of the 2nd Respondent-Petitioner (*Vide*- prayer ‘b’ of the petition); a declaration declaring that the 2nd Respondent-Petitioner has contravened the provisions of Section 3 of the Act (*Vide*- prayer ‘d’ of the petition); an order for the return of the child named in the petition (hereinafter called and referred to as “the child”) to her habitual residence in Canada (*Vide*- prayer ‘e’ of the petition); together with an interim order restraining the 2nd Respondent-Petitioner from taking the child beyond the territorial limits of Sri Lanka until the final determination of this matter (*Vide*-prayer ‘c’ of the petition); that, the 2nd Respondent-Petitioner who had in his statement of objections, raised an array of preliminary objections as to the maintainability of the application made to the High Court of the Province by the Petitioner-Respondent in his statement of objections, had raised a further preliminary objection as to the maintainability of the application on 23.02.2026 on the premise, that the affidavit dated 02.10.2025 which was filed in support of the application dated 03.10.2025, was defective in as much as it had been attested by a Commissioner for Oaths who was an employee of the Central Authority, and therefore had come within the prohibition embodied in the proviso to Section 12(2) of the Oaths Ordinance of No 09 of 1895 as amended (hereinafter called and referred to as “the Oaths Ordinance”), and invited the Court to hear and determine it in the first instance; and that, the learned High Court Judge who heard the preliminary objection on the strength of the written submissions furnished to Court by all the parties, had in the HC order, directed the Petitioner-Respondent to furnish to Court a duly, attested affidavit in place of the affidavit already furnished to the Court by the Petitioner-Respondent along with her application. It is this order (HC order) that the 2nd Respondent-Petitioner now, seeks to revise and set aside in the instant application in revision on the purported exceptional circumstances urged in paragraph 13

(a) to (h) of the petition which may be reproduced *verbatim* the same as follows;

“a) The Impugned Order is *ex facie* bad in law in that the learned High Court Judge failed to rule on or make any determination in respect of the Preliminary Objection duly raised before the Court.

b) The Impugned Order is bad in law in that the learned High Court Judge gave no reasons whatsoever for his decision and failed to deal with the submissions presented to His Honor in support of the Preliminary Objection.

c) The Impugned Order is contrary to and inconsistent with the binding precedent of the Supreme Court of Sri Lanka in Case **Land Reform Commission v. Kandy Plantations Ltd - SC/HCCA/LA/35/2020; SCM 06.06.2024**, which was placed before His Honor for adjudication.

d) The learned High Court Judge failed to appreciate that once a supporting affidavit is found to be bad in law, that defect goes to the very root of the application itself and renders the entire application invalid. As decided by the Supreme Court in the said case which His Honor himself referred to in the Impugned Order - such a fatal defect cannot be rectified by the tendering of a fresh affidavit, and that determination constitutes binding precedent.

e) The Impugned Order is contrary to the express mandatory provisions of Section 12(2) of the Oaths and Affirmations Ordinance No. 9 of 1895 and the clear and unambiguous rulings of the Supreme Court of Sri Lanka on the said provision. The learned High Court Judge, in overruling the Preliminary Objection, failed to appreciate and apply the correct legal test. The order is, therefore, on its face, illegal.

f) The Impugned Order permits the Respondent who filed a supporting affidavit that is a nullity in law - to cure that fundamental and incurable defect by the mere expedient of filing a fresh affidavit. A defect of this

nature goes to the very root of the application and strikes at its evidentiary foundation. To permit its cure at this stage is directly contrary to binding Supreme Court authority and shocks the conscience of the Court.

g) The learned High Court Judge made the Impugned Order without setting out any reasons therefor. An order made without reasons, particularly one overruling a preliminary objection founded on a clear and binding line of Supreme Court authority, is not a judicial determination in any meaningful sense. The Impugned Order is, on that basis, a nullity.

h) The Civil Aspects of International Child Abduction Act No. 10 of 2001 does not confer any right of appeal against an interlocutory order made thereunder. There is accordingly no appellate remedy available to the Petitioner. The revisionary jurisdiction of Your Lordship's Court is the sole and only recourse, and its invocation is both necessary and appropriate in the circumstances.”

The Petitioner-Respondent on the other hand, seeks to resist the instant application in revision on the grounds urged in paragraph 5 of her statement of objections which may be, re-produced *verbatim* the same as follows;

“a. By the Impugned Order dated 28th April 2026 marked as "A10" with the Petition, the Learned High Court Judge, in part, agreed with the Petitioner that the Affidavit is faulty and in part agreed with the Respondent that it is a curable defect and could be rectified by the Respondent filing a fresh Affidavit;

b. The said Order of the Learned High Court Judge is valid in law and should be upheld also in view of any purported defect in the affidavit dated 3rd October 2025 would not defeat the application made by the Respondent under and in terms of the Child Abduction Act for the following reasons and any other reason that the Counsel for the Respondent may submit to Your Lordships during these proceedings:

“

- i. The Act provides in Section 9 (2) that the proceedings before the High Court should be by way of summary procedure in terms of the Civil Procedure Code (as amended);
- ii. In terms of Chapter XXIV of the Civil Procedure Code and in particular, Section 373, filing of a Petition is sufficient to institute proceedings by way of Summary Procedure.
- iii. Section 376 provides that affidavits and/or other material could be attached to the petition only so far as it is convenient to do so, which confirms that it is not mandatory to have an affidavit accompany the Petition so filed.
- iv. The contents of the affidavit/nature of evidence admitted through the said affidavit falls within the exception to Section 181 of the Civil Procedure Code, and thus permit evidence other than direct evidence.
- v. The matters which the High Court is called upon to consider in considering the interlocutory order prayed for under Section 377 (b) and the travel restriction in respect of the Petitioner and the child are contained in the Application of the 1st Respondent-Respondent (found at pages 530-532 of the case record marked as 'A' attached to the Petition). The said application is admissible as evidence in terms of Section 15 of the Child Abduction Act. Thus, any purported defect in the Affidavit by which the said application was referred cannot be construed as invalidating the proceedings filed before the High Court.”

Apart from the preliminary objection raised in paragraph 1 of the statement of objections as to the maintainability of the instant application in revision, the 1st Respondent-Respondent seeks to resist the instant application in

revision on the grounds urged in paragraph 14 (a),(b) and (c) of her statement of objections which may be, re-produced *verbatim* the same as follows;

“

- a) The affidavit has been duly attested by the Assistant Secretary (Legal) to the Ministry of Justice in her capacity as a Justice of the Peace;
- b) Section 12 and the proviso to Section 12(2) of the Oaths Ordinance only applies to the Commissioners for Oaths and is not applicable to a Justice of the Peace;
- c) In any event, the Assistant Secretary (Legal) to the Ministry of Justice is not an "attorney-at-law to any of the parties" and does not have a personal "interest" on the return of the minor child to the habitual residence, and as such, the said proviso does not apply in law.”

It is in this context, I would think it expedient at this juncture to carefully, examine the brief HC order.

The operative part of the HC order in its literal context, reads thus;

“අධිකරණයේදී දෙපාර්ශවය විසින් ඉදිරිපත් කරන ලද කරුණු සලකා බැලීමෙන් අනතුරුව මෙම ලේඛනයේ අවස්ථා සලකා බලා පෙන්සම්කරු විසින් විධිමත් පෙන්සමක් ඉදිරිපත් කිරීමට ඉඩදීම උචිත බව පෙනී යන හෙයින් සති දෙකක කාලයක් තුළ යළි විධිමත්ම අත්සන් තබන ලද දිවුරුම් ප්‍රකාශයක් ගොනු කිරීමට නියෝග කරමි.”

However, a cursory glance of the operative part of the brief HC order as quoted above, does not explicitly, show as to whether the learned High Court Judge had upheld or rejected the preliminary objection so raised by the 2nd Respondent-Petitioner. However, upon a careful and close scrutiny of the brief HC order, the irresistible inference that one may reasonably, draw from the specific direction made by the learned High Court Judge on the Petitioner-Respondent that she should furnish to Court a duly, attested affidavit in place of the affidavit already furnished to the Court by the Petitioner-Respondent along with her application is that he had thereby, implicitly, upheld the preliminary objection so raised by the 2nd Respondent-Petitioner as to the maintainability of the application of the Petitioner-Respondent on the said premise that, the affidavit dated 02.10.2025 which was filed in support of the

application dated 03.10.2025, was defective in as much as it had been attested by a Commissioner for Oaths who was an employee of the Central Authority, and therefore had come within the prohibition embodied in the proviso to Section 12(2) of the Oaths Ordinance of No 09 of 1895 as amended (hereinafter called and referred to as “the Oaths Ordinance”).

It is significant to observe that the Petitioner-Respondent in paragraph 5 (a) and (b) of the statement of objections filed before this Court in resisting the instant application in revision, had clearly, and unequivocally, admitted that it was so when she stated therein, that, the Learned High Court Judge had in the HC Order, agreed in part with the 2nd Respondent-Petitioner that the Affidavit is faulty while agreeing in part with the Petitioner-Respondent that the defect was curable and thus it could be rectified by the Petitioner-Respondent in furnishing a fresh Affidavit duly attested and therefore, purported defect in the affidavit dated 03.10.2025 would not defeat the application made by the Petitioner-Respondent under and in terms of the Child Abduction Act, hence, the HC order is valid in law and should thus, be upheld.

Furthermore, the fact that the 1st Respondent-Respondent had not taken any step to canvass the HC order, clearly, and unequivocally, shows that she too, had admitted the correctness of the said findings of the learned High Court Judge.

Moreover, the 2nd Respondent-Petitioner too, had admitted that it was so, in view of the matters adverted to by him in paragraphs 6 and 7 of the synopsis of submissions dated 01.09.2026, that, the Respondents are barred and estopped from advancing the aforesaid contentions for the reasons that the Learned High Court Judge, having heard the preliminary objection raised by the Petitioner and the oral and written submissions made on behalf of all parties, agreed, in part, with the Petitioner that the Affidavit was "faulty"; and that the Petitioner-Respondent in paragraph 5 of the Statement of Objections, has conceded that the order of the learned High Court Judge is correct in part, by agreeing with the Petitioner that the Affidavit is faulty; and that,

critically, the Respondent has not filed any appeal or application for revision against the finding that the Affidavit is defective and thus, by deliberately choosing not to challenge that finding before an appropriate Court, the Respondent has unequivocally accepted and acquiesced in the finding that the Affidavit is indeed defective.

Hence, the Petitioner-Respondent and the 1st Respondent-Respondent had clearly, and unequivocally, admitted in no uncertain terms that the learned High Court Judge, having heard the preliminary objection raised by the Petitioner and the oral and written submissions made on behalf of all parties, agreed, in part, with the 2nd Respondent-Petitioner that the Affidavit was "faulty".

In the circumstances, both the Petitioner-Respondent as well as the 1st Respondent-Respondent are now, debarred and estopped in law from re-agitating the validity and/or legal soundness of the said findings before this Court as rightly, contended by the learned President's Counsel for the 2nd Respondent-Petitioner.

However, it is regrettable to observe, that, both the Petitioner-Respondent and the 1st Respondent-Respondent had nonetheless, made a futile attempt in the course of the argument before us to re-agitate the same issue in respect of which a clear and definite finding had admittedly, been so reached by the learned High Court Judge as enumerated above, by contending that the prohibition enumerated in proviso to section 12(2) of the Oaths Ordinance would not be applicable to the affidavit in question for; it had been attested by a Justice of the Peace and not a Commissioner for Oaths, which clearly, and unequivocally, shows that the Petitioner-Respondent and the 1st Respondent-Respondent had thus, attempted to contend that the findings of the learned High Court Judge as enumerated above, is erroneous, thus, going back on her own admission of the Petitioner-Respondent made in explicit terms in paragraph 5 (a) and (b) of the statement of objections as enumerated above and the 1st Respondent-Respondent upon her acquiescence of the said findings of the learned High Court Judge as enumerated above.

Hence, I would hold that the contention so advanced by the Petitioner-Respondent and the 1st Respondent-Respondent cannot sustain in law and therefore, it ought to be rejected as rightly, contended by the learned President's Counsel for the 2nd Respondent-Petitioner.

I would therefore, hold that the findings of the learned High Court Judge that the affidavit in question is faulty, remains unchallenged and uncontroverted.

There now, remains for consideration only the question as to whether or not, the defect in the affidavit of the Petitioner-Respondent filed along with her petition under section 9 of the Act in support of the contents therein, is curable in law as contended by the Petitioner-Respondent and the 1st Respondent-Respondent or else, as to whether or not it is incurable in law as contended by the 2nd Respondent-Petitioner.

It may now, be examined.

It was the position adverted to by the learned President's Counsel for the 2nd Respondent-Petitioner that a defect as such in an affidavit is one that would go to the root of the action and therefore it is incurable and thus, be fatal to the maintainability of the action and in the result, action should be dismissed *in-limine*.

It was on the other hand, the position of both learned Senior State Counsel for the Petitioner-Respondent as well as the learned President's Counsel for the 1st Respondent-Respondent that the defect is curable and therefore, it can be cured by furnishing a fresh affidavit as directed by the learned High Court Judge.

However, it is significant to observe that, both the Petitioner-Respondent as well as the 1st Respondent-Respondent in the course of the argument before us sought to contend further that, it is not a necessary requisite under the summary procedure to attach by way of an exhibit, an affidavit to the written petition presented to Court by the Petitioner under Chapter XXIV of the Civil Procedure Code as amended, and therefore, non-attachment of an affidavit to

the written petition or faulty affidavit attached thereto, will not affect the validity of the application made thereunder, and therefore, the faulty affidavit attached to the written petition will not vitiate the application or action instituted under the summary procedure and as a result, the faulty affidavit attached to the written petition filed in the High Court of the Province by the Petitioner-Respondent will not vitiate the application and/or the action filed thereat, under section 9 of the Act. On the other hand, it was contended by the 2nd Respondent-Petitioner that it was a necessary requisite under the summary procedure and non-compliance is fatal, and it would culminate in the dismissal of the application and/or the action *in-limine*.

They may now, be examined.

With regard to the procedure to be adopted and followed in an action under the Act, Section 9(2) thereof, provides that, "Every application under subsection (1), shall be by way of summary procedure and shall be exempt from the payment of any stamp duty under the Stamp Duty Act No. 43 of 1982."

Hence, in the instant action, the procedure to be adopted and followed as laid down by section 9 of the Act, is the summary procedure as envisaged by Chapter XXIV of the Civil Procedure as amended.

I would think it expedient at this juncture to examine the provisions of the Civil Procedure Code as amended pertaining to the summary procedure.

Section 7 of the Civil Procedure as amended provides that,

"The procedure of an action may be either " regular " or " summary "."

Section 8 of the Civil Procedure as amended provides that,

"Save and except actions in which it is by this Ordinance or any other law specially provided that proceedings may be taken by way of summary procedure, every action shall commence and proceed by a course of regular procedure, as hereinafter prescribed."

Section 373 of the Civil Procedure as amended provides that,

“Every application to the Court, or action, of summary procedure shall be instituted upon a duly stamped written petition presented to Court by the applicant.”

Section 376 of the Civil Procedure as amended provides that,

“With the petition, and so far as conveniently can be attached thereto, shall be exhibited such affidavits, authenticated copy records, processes, or other documentary evidence as may be requisite to furnish prima facie proof of the material facts set out or alleged in the petition, or the court may in its discretion permit or direct the petitioner to adduce oral evidence before the court for this purpose, which shall be taken down by the court in writing.”

Section 377 of the Civil Procedure Code as amended provides that,

“If the court is satisfied on the evidence exhibited or adduced that the material facts of the petition are prima facie established or is of opinion that on the footing of these facts the petitioner is entitled to the remedy, or to the order in his favour, for which the petition prays, or any part thereof, then the court shall accordingly make either-

(a) an order *nisi*, conditioned to take effect in the event of the respondent not showing cause against it on a day appointed by the order for that purpose; or

(b) an interlocutory order appointing a day for the determination of the matter of the petition, and intimating that the respondent will be heard in opposition to the petition if he appears before the court for that purpose on the day so appointed.”

Section 380 of the Civil Procedure Code as amended provides that,

“If the court is not satisfied on the evidence exhibited or adduced that the material facts of the petition are *prima facie* established or is of opinion that on the footing of those facts the petitioner is not entitled to the relief which he asks, then in either case the court shall refuse the petition.”.

It is common ground that the instant action had been instituted by the Petitioner-Respondent in the High Court of the Province under the summary procedure as contained in chapter XXIV of the Civil Procedure Code as amended, and as provided for by section 9 of the Act by presenting thereto, a written petition as required by section 9(2) thereof, and hence, the application of the Petitioner-Respondent is entirely, governed by the procedure laid down by Chapter XXIV of the Civil Procedure Code as amended.

In the light of section 376 of the Civil Procedure Code as amended, it is a mandatory requisite that with the Petition and so far as conveniently attached thereto, **shall be exhibited** such affidavits, authenticated copy records, processes, or other documentary evidence **as may be requisite to furnish *prima facie* proof of the material facts set out or alleged in the petition.** For; the affidavits, authenticated copy records, processes, or other documentary evidence are the essential materials upon which the Court has to be satisfied if the material facts of the petition are *prima facie* established by the Petitioner. [Emphasis is mine]

What if, the affidavit attached to the petition is faulty or defective? Would the dismissal of an action or application instituted under the summary procedure, be automatic in such circumstances?

It may now, be examined.

It was *inter-alia* held by this Court in **Damayanthi Abeywardene and Another Vs. Hemalatha Abeywardene and others 1993 [1] SLR 272** at page 277,

“In terms of that section every application has to be made by way of summary procedure and every person sought to be affected by the order shall be named as a respondent in the petition. This leads us to a consideration of the provisions of the Civil Procedure Code relating to summary procedure. Section 376 states as follows :

“With the petition, and so far as conveniently can be attached thereto,. shall be exhibited such affidavits, authenticated copy records, processes, or other documentary evidence as may be requisite to furnish prima facie proof of the material facts set out or alleged in the petition, or the court may in its discretion permit or direct the petitioner to adduce oral evidence before the court for this purpose, which shall be taken down by the court in writing”

It is to be seen from this section that **a petition filed by way of summary procedure should be supported by affidavits and other documentary evidence necessary**” to furnish prima facie proof of the material facts set out or alleged in the petition.”. [Emphasis is mine]

In the light of the principle enunciated by this Court in the case in **Damayanthi Abeywardene and Another Vs. Hemalatha Abeywardene and others (Supra)**, it is mandatory that, **a petition filed by way of summary procedure should be supported by affidavits and other documentary evidence necessary**, “to furnish prima facie proof of the material facts set out or alleged in the petition.” [Emphasis is mine]

It was *inter-alia*, held by the Supreme Court in **Gunaratne vs Translanka Investments Ltd. and Another 1991 [2] SLR 1** at page 5 that, “Even in applications of summary procedure, the Court has a discretion under section 376 to direct or permit the Petitioner to adduce oral evidence.”

Hence, the law as it stands now, as provided for by section 376 of the Civil Procedure Code as amended and as enunciated by Supreme Court in **Gunaratne vs Translanka Investments Ltd. and Another (Supra)** and by

this Court in **Damayanthi Abeywardene and Another Vs. Hemalatha Abeywardene and others (Supra)** is that it is mandatory that, **a petition filed by way of summary procedure should be supported by affidavits and other documentary evidence necessary**, “to furnish prima facie proof of the material facts set out or alleged in the petition”, but, however, “Even in applications of summary procedure, **the Court has a discretion under section 376 of the Civil Procedure Code as amended ‘to direct or permit’ the Petitioner to adduce oral evidence** before the court **necessary, “to furnish prima facie proof of the material facts set out or alleged in the petition”** [Emphasis is mine]

The resultant position being that even though it is mandatory that, **a petition filed by way of summary procedure should be supported by affidavits and other documentary evidence necessary**, “to furnish prima facie proof of the material facts set out or alleged in the petition”, but, however, “Even in applications of summary procedure, the Court has a discretion under section 376 of the Civil Procedure Code as amended to direct or permit the Petitioner to adduce oral evidence **necessary, “to furnish prima facie proof of the material facts set out or alleged in the petition”** even in case, an affidavit filed in support of the contents in the Petition presented to Court under the summary procedure, is defective or faulty as in this case and hence, such a defect in an affidavit is curable as provided for by section 376 of the Civil Procedure Code as amended and as held by the Supreme Court in **Gunaratne vs Translanka Investments Ltd. and Another (Supra)** [Emphasis is mine]

Hence, a defective and/or faulty affidavit filed in support of the contents in the Petition presented to Court under the summary procedure, as in this case is defective or faulty does not in any manner, give rise to an automatic dismissal of an action or application instituted under the summary procedure in Court for; defect as such is curable as enumerated above.

Even, in this instance too, the learned High Court Judge had ample power under section 376 of the Civil Procedure Code as amended, to permit and/or direct the Petitioner-Respondent to adduce oral evidence **necessary, “to**

furnish prima facie proof of the material facts set out or alleged in the petition", instead of directing the Petitioner-Respondent to furnish to Court a duly, attested affidavit afresh.

However, I would find no provision under Chapter XXIV of the Civil Procedure Code as amended which prevent the learned High Court Judge from directing the Petitioner-Respondent to adduce oral evidence **necessary, "to furnish prima facie proof of the material facts set out or alleged in the petition"** in the event, he would find the affidavit filed along with the petition, defective or faulty for one reason or the other as done in this instance by the learned High Court Judge. [Emphasis is mine]

This brings me to the pivotal and material issue that had been advanced by the learned President's Counsel for the 2nd Respondent-Petitioner in the course of the argument and it may now, be examined.

Record shows that, the learned High Court Judge had in his initial order dated 13.10.2025 (hereinafter called and referred to as "the initial order"), granted the Petitioner-Respondent the relief as prayed for in prayer 'a', 'b' and 'c' of the petition dated 03.10.2025 (**A1**).

Significance here is that, there's nothing in his initial order to show on what material he was satisfied that the material facts of the petition (**A1**) were *prima facie*, established before he had made the initial order, granting the Petitioner-Respondent the relief as prayed for in prayer 'a', 'b' and 'c' of the petition dated 03.10.2025 (**A1**) even though it would be essential and obligatory on the part of the learned High Court Judge so to do, in view of the fact that, the learned High Court Judge in the HC order (**A10**) had by implication, found the affidavit of the Petitioner-Respondent filed along with her application (**A1**) under summary procedure, defective or faculty. Nevertheless, the learned High Court Judge had not opted even to disclose and/or specify in the subsequent HC order (**A10**) on what material he was satisfied that the material facts of the petition (**A1**) were *prima facie*, established before he had made order dated

13.10.2025, granting the Petitioner-Respondent the relief as prayed for in prayer 'a', 'b' and 'c' of the petition dated 03.10.2025 (**A1**).

In the circumstances, it clearly, and unequivocally, appears that the initial order of the learned High Court Judge cannot sustain both in fact and law.

Hence, I would consider it highly, unsafe to permit the initial order to stand any further.

I would thus, consider this to be a fit and proper case to exercise the extraordinary revisionary jurisdiction vested in this Court by Article 138(1) of the Constitution in order to avert grave miscarriage of justice thus, occurred.

Hence, I would acting in revision, set aside the initial order.

I would thus, direct the learned High Court Judge to hear and determine the application of the Petitioner-Respondent afresh, on the strength of the duly, attested affidavit that may be furnished to Court by the Petitioner-Respondent as directed by the learned High Court Judge in the HC order (**A10**) and the other material that were furnished to Court by the Petitioner-Respondent along with her petition (**A1**) and conclude it as expeditiously, as possible strictly, in accordance with the law as enumerated above affording it top priority.

Subject to the above, I would allow the instant application in revision.

In view of all the above circumstances, I would make no order for costs.

JUDGE OF THE COURT OF APPEAL

D. THOTAWATTA, J.

I agree.

JUDGE OF THE COURT OF APPEAL